

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN EL SALVADOR

Complete Community Opposition How-To

This guide is built around El Salvador's proven lever — a national law won by a broad grassroots-and-Church coalition around the one argument that unites the country, water — together with the double-edged investor-state arbitration system, and it names the tools you'll meet (the water argument, the Church, national legislation, the courts, ICSID arbitration) in plain words. It is honest that the 2017 ban was later reversed and the space is now far more closed, and it puts your safety first.

INTRODUCTION & FRAMEWORK

For more than a decade, the farmers of **Cabañas**, the Catholic Church, water defenders, scientists, and community groups fought a foreign gold mine — the **El Dorado project of Pacific Rim, later the Australian-Canadian giant OceanaGold** — that threatened the rivers a water-scarce nation depends on. They paid a terrible price: four anti-mining activists were murdered, among them **Marcelo Rivera** and **Dora Alicia Recinos Sorto**, who was eight months pregnant. The company retaliated another way too, suing the country for hundreds of millions of dollars before a **World Bank investor-state tribunal (ICSID)**. And still the movement won: in **2016 the tribunal ruled for El Salvador** and ordered the company to pay millions in costs — a rare defeat for a mining giant. Then, in **March 2017, El Salvador became the first country on Earth to ban all metal mining**, the Legislative Assembly passing it unanimously, lawmakers holding signs that read "No to Mining, Yes to Life." A tiny, poor country had beaten a multinational and outlawed an entire industry to protect its water, because ordinary people organised, endured, and refused to give up.

The farmers of Cabañas, the Catholic Church, and the water defenders beat a foreign gold mine — and, in 2017, won the world's first national ban on metal mining — with tools that remain real in El Salvador, though narrower now. The **water argument** unites a water-scarce nation like no other. The **Catholic Church** carries deep moral authority. **National legislation** was the winning lever in 2017, and legislation can be fought for again when the ground shifts. The **courts** function, if imperfectly. And the **investor-state arbitration** system, though a threat companies wield, was beaten at ICSID in 2016 when the tribunal ruled for El Salvador. But these tools have grave limits now, and this guide states the hardest lesson plainly and up front: in **December 2024 the Legislative Assembly repealed the ban**, and metal mining was authorised again, reserved to the state under President Bukele's government. A historic, world-first victory was reversed seven years later — not a reason for despair, since the 2017 win proves what this movement can do, but a warning that even a landmark legislative victory can be undone, and that today's levers are narrower, in a political environment far more closed. Above all, keep your people safe, because activists here — among them Marcelo Rivera and Dora Alicia Recinos Sorto, eight months pregnant — have been murdered. So aim for what these levers can still deliver, sustaining the fight through a closed period until the ground shifts again.

The Whole Strategy in One Idea

A destructive project looks unstoppable, but it is a chain of permits, laws, and legitimacy, and a chain breaks at its weakest link. A Salvadoran fight turns on the **water argument** that unites the country; on the **Church's** moral weight; on the **coalition** of farmers, faith, and science; on **national legislation** and the **courts**; and

on resisting the **investor-state** threat. Every one of those is a link you can grab — and water, the one argument that unites the nation, is the sharpest. **Find the one closest to your hand and pull — safely.**

Be Honest About Which Fight You're In

Before you begin — and mind your safety, because activists have been killed — work out your real situation:

- **If it threatens water, that is your sharpest, most unifying lever** — in a water-scarce nation, water unites farmers, faith, and even politicians with no interest in the environment.
- **If the Church can be enlisted, its moral authority is decisive** — the Catholic Church was central to the mining victory.
- **If a company threatens investor-state arbitration, don't be cowed** — El Salvador was sued for hundreds of millions and won at ICSID in 2016, and a huge demand can backfire.
- **If the space is closed and a win reversed, sustain the fight** — the 2017 ban was repealed in 2024, so build for endurance until the ground shifts, and above all keep your people safe.

Read the whole guide once before you move. Two habits run through it: **unite the country around water, through a broad grassroots-and-Church coalition**, and **sustain the fight through a closed period, keeping your people safe** — because even a world-first win can be reversed, and the fight goes on.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching — in a now more closed environment.

Who Actually Decides

The government drives major projects, now in a more closed political environment, and metal mining is again authorised, reserved to the state. But projects still meet the **water argument** that unites the nation, the **Church's** moral authority, the **courts**, and — where a foreign investor is involved — the double-edged **investor-state arbitration** system. And **national legislation**, the 2017 winning lever, remains the ground a future movement can fight on. Know which of these you can reach — water and the Church are the sharpest, and safety governs all.

How a Project Moves — and Where You Jump In

The permit and the water. A project needs its permits and threatens the water. *Your opening — the sharpest:* the water argument that unites the country against it.

The legitimacy and the Church. *Your opening:* the Church's moral authority and the coalition of farmers, faith, and science, denying the project legitimacy.

The law and the courts. *Your opening:* national legislation (the 2017 lever) where the ground allows, and the courts.

The investor-state dimension. *Your opening:* resist an ICSID-style claim, as El Salvador did in 2016 — a huge demand can backfire and unite the country.

Follow the Money and the Permissions

Dig up three things — carefully, in a closed space. **Who's behind it and who finances it** — the company, any foreign investor (reachable through arbitration and reputation). **What water it threatens** — because

water is the argument that unites the nation. **Whether an investor-state claim is in play** — because that threat is double-edged, and was beaten in 2016.

Who's Supposed to Be Watching

Each is an ally or an arena. The **Church** carries moral authority. The **courts** function, if imperfectly. **National legislation** is the ground of a future fight. **International attention** and the **investor-state** record protect and pressure. And El Salvador's **farmers, water defenders, faith communities, scientists, and civil society** are the forces that reach furthest — the coalition that won in 2017, and can rebuild.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises, and the space is now more closed. What most moves them: whether water unites the country, whether the Church and coalition are behind it, and whether the fight can be sustained safely.

What you do	Roughly works	How long	Cost/Risk	What "works" means
Just gather documents	5–10%	weeks	low– risk	The base for everything else
The water argument	30–55%	months–yr	low	The unifying case built
Enlist the Church	30–55%	months–yr	low	Moral authority engaged
Broad grassroots-and-Church coalition	30–55%	months–years	low– risk	A movement that endures
National legislation (when the ground allows)	20–50%	years	low	A law won (as in 2017)
Resist investor-state arbitration	30–55%	2–5 yr	mod	A claim beaten (as at ICSID 2016)
Courts	20–45%	months–yr	mod	A permit or decision challenged
International attention	30–55%	months–yr	low	Exposure; protection
Everything together (water, Church, coalition, law)	35–60%	years	mod	A ban won — though it can be reversed
Sustaining through a closed period	20–45%	years	risk	The fight kept alive until the ground shifts

The levers that move the needle most are the **water argument** and the **grassroots-and-Church coalition**, with **national legislation** as the winning instrument and **investor-state resistance** as a double-edged front. El Salvador shows the ceiling (a multinational beaten at ICSID, an entire industry banned nationwide) and the hardest floor of all (the ban was repealed seven years later, and activists were murdered). So aim for the water argument pressed, a coalition built, a claim resisted, and the fight sustained safely until the ground shifts.

On cost and risk: the water argument, the Church, and the coalition cost mainly organised effort; but this fight has cost lives, and the space is now more closed, so safety is paramount. The great strength is water and the Church uniting a nation; the great

requirements are endurance through a closed period and the safety of your people.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this threatened river, this water source, this investor-state claim — is strong, and safer. Answer five questions in writing, carefully.

- 1. What is it, and who's behind and financing it?** Name the project, the company, and any foreign investor.
- 2. What water does it threaten?** Establish, precisely, the **rivers and water sources** it endangers, in a water-scarce nation — **water is your sharpest, most unifying lever**, as it was against the gold mine.
- 3. What stage is it at, and what's the next opening?** A permit, a legal moment, an investor-state claim, a legislative opening. These matter, though the space is closed.
- 4. Is an investor-state claim in play?** Because that threat is double-edged — El Salvador was sued for hundreds of millions and won at ICSID in 2016, and a huge demand can backfire and unite the country.
- 5. Who's your coalition — and who's at risk?** The **farmers, water defenders, the Church, scientists, and civil society** — and, crucially, a **safety plan**, because activists here have been murdered.

What this looks like in real life. A mining or heavy project threatens the rivers a water-scarce community depends on, backed by a foreign investor. The five questions yield: the company and its investor; the water it threatens (your unifying lever); a permit or claim in play; a possible investor-state dimension (beaten before); and a coalition of farmers, faith, and science, with a safety plan. That's the Salvadoran pattern — unite the country around water, through the Church and the coalition, resist the investor-state threat, and keep your people safe.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — of the water threat above all. Build it in three layers, carefully.

Layer one: the water threat. The heart of it: document, with science, the **threat to the rivers and water sources** — the contamination, the depletion, the toxic chemicals like cyanide and mercury in metal mining — in a water-scarce nation. This is the unifying evidence that won in 2017.

Layer two: the harm and the coalition. Document the broader harm and the community affected, and map the **coalition** — the farmers, the Church, the water defenders, the scientists — gathered with care for safety.

Layer three: the investor and the map. Trace the **company and any foreign investor**, and whether an **investor-state claim** is possible, so you know the double-edged front. Walking into the coalition, the Church, the courts, or the nation with the documented water threat and the coalition — carefully — is what builds the movement.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The water threat** — the science on the rivers, the contamination, the toxic chemicals — the unifying evidence.

- **The broader harm and the affected community** — with testimony, gathered safely.
- **The company and any foreign investor** — and whether an investor-state claim is in play.
- **The coalition map** — farmers, the Church, water defenders, scientists — mapped with care.
- **A safety plan** — because activists here have been killed.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; a broad grassroots-and-Church coalition, united around water, gives you the power that won in 2017. Build in four moves, safely.

Unite around water. The one argument that unites the country is **water**. Build everything around it — farmers, faith, science, and even those with no interest in the environment can unite to protect a water-scarce nation's rivers.

Enlist the Church. The **Catholic Church** was central to the mining victory, its moral authority decisive. Enlist it — it carries a weight few other voices do, and can shelter a movement.

Build a broad, enduring coalition — carefully. Join the **farmers of the affected land, water defenders, scientists, and civil society** with the Church into a broad coalition — the kind that fought for over a decade and won. Build it with care for safety, because this movement has lost members to murder.

Build to last, and resist the investor-state threat. The fight ran over a decade and included beating an ICSID claim. Build clear roles, a secure archive, a way to decide together, a safety plan, and the endurance to sustain the fight through a closed period until the ground shifts — resisting an investor-state claim as El Salvador did in 2016.

STEP 4: WATER, THE CHURCH, THE LAW & INVESTOR-STATE ARBITRATION

El Salvador's sharpest levers unite a nation around water, through the Church, the law, and the resistance of investor-state claims.

The Water Argument — the Unifying Lever

Your sharpest lever: **water**, the one argument that unites a water-scarce nation. Build everything around the threat to the rivers and water sources — it united farmers, faith, scientists, and politicians against the gold mine, and remains the ground that unites the country.

The Church and the Coalition

Enlist the **Catholic Church**, whose moral authority was central to the 2017 victory, and build the broad **grassroots-and-Church coalition** — farmers, water defenders, scientists, civil society — that fought for over a decade. This is the movement that wins, and shelters its people.

National Legislation and the Courts

The 2017 win came through **national legislation** — a nationwide ban. Though that ban was repealed in December 2024 and the space is now more closed, legislation remains the ground a future movement can fight on when the ground shifts, alongside the **courts**.

Investor-State Arbitration — the Double-Edged Front

A foreign company may wield **investor-state arbitration** (ICSID) — El Salvador was sued for hundreds of millions. But it is double-edged: the sheer size of the demand backfired, outraging even the environmentally indifferent and uniting the country, and in **2016 the tribunal ruled for El Salvador** and ordered the company to pay costs. Don't be cowed by the threat; a huge claim can be beaten and can rebound on the claimant.

The Honest Limits — and Safety

Straight talk: these levers won a world-first victory, but that ban was reversed in 2024, the space is now more closed, and activists have been murdered. So use the levers — water, the Church, the coalition, the law, the courts, and investor-state resistance — sustain the fight through a closed period, keep your people safe above all, and count the water argument pressed, a coalition built, a claim resisted, and the fight kept alive until the ground shifts as real wins.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A threat becomes a matter of the nation's water. Not "we oppose the mine" but *"this poisons the rivers a water-scarce nation depends on — with cyanide and mercury — and threatens us all."*

The Church makes it a matter of conscience. *"To protect God's creation and our people's water is a moral duty — No to Mining, Yes to Life."*

An investor-state threat becomes an outrage. *"A foreign company is suing our poor country for hundreds of millions over a permit it was denied,"* which backfired and helped win the ban.

A reversal becomes a call to endure. *"They repealed our historic ban — but we won it once, and we will fight on for our water."*

Match it to the venue: the water threat to the nation and the coalition; the moral case to the Church; the investor-state outrage to the public and the press; the reversal to the enduring movement. Keep it careful and safe.

STEP 5: MEDIA STRATEGY

In El Salvador, national and international attention is a real lever — the water argument and the huge investor-state demand united the country, and the world watched a poor nation beat a mining giant — and it protects a movement that has lost members to violence. But in a more closed space, care and safety come first.

Lead with the water and the moral cause, not procedure. Not "the permit was flawed" but "a foreign company poisoning the rivers of a water-scarce nation, and suing us for hundreds of millions when we said no." Use your strongest material: the water threat, the Church's voice, the investor-state outrage, and the community.

Work several audiences at once — carefully. Salvadoran press and the Church unite the country; international attention reaches the mining-giant story and protects activists. Make it easy: clear science on the water, the moral framing, careful testimony.

Two hard rules. Accuracy above all — one exaggeration can discredit hard-won proof. And protect people — this movement has lost members to murder, and the space is now more closed, so carry the fight carefully and safeguard those exposed.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything; and mind your safety.

8A — The water argument (to officials / the public).

Subject: [Project] and our water — [area].

"We, the community of [place], document that [project] threatens the rivers and water our water-scarce nation depends on: [specifics, the science]. We ask that our water be protected. [Attach evidence.]"

8B — Enlisting the Church.

Subject: A moral appeal — our water and [project].

"We ask the Church to stand with us against [project], which threatens the water and life of our people, as it did in the mining fight. [Contact.]"

8C — Building the coalition (carefully).

Subject: Our water, our land — let's unite to defend it.

"We propose a broad coalition — farmers, faith, water defenders, scientists — to defend our water against [project], as El Salvador once did. Let's organise carefully and safely. [Contact.]"

8D — Resisting an investor-state claim (to a lawyer / the public).

Subject: Investor-state threat over [project].

"[Company] threatens/pursues an investor-state (ICSID) claim over [project]. We recall that El Salvador was sued for hundreds of millions and won at ICSID in 2016. We ask your advice on resisting it, and we will expose the outrage. [Contact and evidence summary.]"

8E — Court challenge (to a lawyer).

Subject: Legal challenge — [project].

"Our water is threatened by [project]: [specifics]. We ask your advice on a challenge in the courts. [Contact and evidence summary.]"

8F — To the company / foreign investor.

Subject: Water harm and reputational risk — [project].

"We are the community affected by [project] at [location], which threatens our water. As with the El Dorado mine, this faces sustained opposition and carries real legal and reputational risk. [Contact and evidence summary.]"

8G — Letter to the (international) press.

Subject: A foreign project threatens the water of a water-scarce nation.

"[Project] threatens the rivers El Salvador depends on, [and a foreign company may sue us for saying no]. We can provide the science, the moral case, and the community's voice. [Contact.]"

8H — Sustaining the movement.

Subject: We won once for our water — let's fight on.

"They repealed our historic mining ban, but we won it once, around water, with the Church and a united people. Let's sustain the fight — safely, together — until the ground shifts again. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean — and safely — do these six things, in order:

1. **Build everything around the water threat — the unifying argument (8A).**
2. **Enlist the Church's moral authority (8B).**
3. **Build a broad grassroots-and-Church coalition, carefully (8C).**
4. **If an investor-state claim looms, resist it — it was beaten in 2016 (8D).**
5. **Use the courts, and go public, at home and abroad (8E/8G).**
6. **Sustain the fight through a closed period, and keep your people safe (8H).**

Even lean, those six unite the country around water and sustain the fight — the Salvadoran template.

WHEN THE SYSTEM IS TILTED

El Salvador's field is now more tilted than it was, so plan for it — and for safety.

When a landmark win is reversed. The 2017 ban was repealed in 2024. Don't despair — the win proves what the movement can do — but build for endurance, sustaining the fight until the ground shifts again.

When the space is more closed. The political environment is far more closed than in 2017. Work carefully, prioritise the water argument and the Church, and keep your people safe.

When a company threatens investor-state arbitration. Don't be cowed. El Salvador was sued for hundreds of millions and won at ICSID in 2016, and a huge demand can backfire and unite the country.

When activists are threatened. This movement has lost members to murder. Safety is paramount — protect those exposed, and never let the fight cost more lives.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

El Salvador's mining and resource decisions have long raised concerns of capture, so this matters — but tread carefully in a more closed space.

How to spot it. Permits against the water evidence; decisions favouring a company or investor; benefits to the connected while communities' water bears the harm; a reversal of protection to serve interests.

Who's supposed to guard against it. El Salvador's audit and oversight bodies examine public money and conduct. The **courts** function, if imperfectly. **International attention** and the **investor-state** record expose and pressure. And El Salvador's **Church, water defenders, and civil society** have exposed captured decisions and beaten a mining giant.

How to fight it safely. Document precisely and factually — how a decision defied the water evidence, who benefits — and keep clear the line between what you can prove and what you suspect. In a closed space, route serious evidence to the courts, international bodies, the Church, and trusted journalists rather than making risky public accusations, and protect those exposed. Pair it with the water and coalition case.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together, and safely. The documented water threat builds your case; the water argument unites the country; the Church and the coalition are the muscle; the law, the courts, and investor-state resistance press it; international attention protects and exposes. Together they multiply. One at a time, they stall — and safety and endurance govern all.

Early on (weeks 1–8): document the water threat; build everything around water; enlist the Church; build a broad coalition, carefully; make a safety plan.

In the thick of it (months–years): press the water argument and the moral case; resist any investor-state claim; use the courts; go public at home and abroad.

The long haul (years): sustain the fight through a closed period; keep the coalition and the case ready for a legislative opening; hold the line for the water argument pressed, a coalition built, a claim resisted, and the fight kept alive until the ground shifts — keeping your people safe.

FINAL ASSESSMENT

Stopping a destructive project in El Salvador has been done in the most extraordinary way — a tiny, poor country beat a mining multinational at a World Bank tribunal and became the first nation on Earth to ban all metal mining, to protect its water. Hold both truths. El Salvador's distinctive power is real: a national law won by a broad grassroots-and-Church coalition around the one argument that unites the country, water, together with the double-edged investor-state arbitration that a company wielded and lost. And the constraints are the hardest of any: that world-first ban was repealed in December 2024, the political environment is now far more closed, the levers are narrower, and four activists were murdered in the fight.

Here's the discipline that wins what can be won — safely. Build everything around water, the one argument that unites a water-scarce nation, documented with science on the threat to its rivers. Enlist the Catholic Church, whose moral authority was central to the victory, and build the broad grassroots-and-Church coalition of farmers, water defenders, scientists, and civil society that fought for over a decade. If a foreign company threatens investor-state arbitration, don't be cowed — El Salvador was sued for hundreds of millions and won at ICSID in 2016, and a huge demand can backfire and unite the country. Use national legislation as the winning instrument when the ground allows, and the courts. And in a more closed space where a landmark win was reversed and lives were lost, sustain the fight until the ground shifts again, and keep your people safe above all. Count the water argument pressed, a coalition built, a claim resisted, and the fight kept alive as real wins. That is what El Salvador did — water, the Church, the coalition, and

endurance together. So can you.